

**Disposition**

Motion will be continue to 5/12/26, 9am.

Plaintiff to notify Defendant.

**4. 9:00 AM CASE NUMBER: L24-10099**

**CASE NAME: CAPITAL ONE, N.A. VS. IRIS C ARNEDO**

**\*HEARING ON MOTION IN RE: ON THE PLEADINGS**

**FILED BY: CAPITAL ONE, N.A.**

**\*TENTATIVE RULING:\***

**Background**

Plaintiff filed, on 12/17/25, a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 8/12/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 4/2/25, were deemed to be true by the court.

**Analysis**

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the sole cause of action, based on the allegation that Defendant became indebted in the amount of \$8,926.31, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See

Order entered 8/20/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,926.31.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

5. 9:00 AM CASE NUMBER: L25-02862  
CASE NAME: WELLS FARGO BANK, N.A. VS. SALLIE KNOWLTON  
\*HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED FILED BY PLN ON 11/24/25  
FILED BY: KNOWLTON, SALLIE

**\*TENTATIVE RULING:\***

Plaintiff filed a motion to deem as true requests for admission by the Defendant. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court’s mistake and it extends its apology.

**Disposition**

Motion will be continue to 6/2/26, 9am.

Court to notify Defendant.

6. 9:00 AM CASE NUMBER: L25-03679